

Sponsored Research Agreement #V250742

This sponsored research agreement is effective the date of last signature and is between the Regents of the University of Idaho, a public university of the state of Idaho ("**University**") and Idaho Mint Commission a non-profit organization in the State of Idaho ("**Sponsor**"). University and Sponsor may be referred to individually as "**party**" or collectively as "**parties**."

The parties enter into this agreement to carry out the project described in Attachment A under University's control and direction ("**Research Project**"). The Research Project will further University's mission to provide instruction, research, and public service to the benefit of the state of Idaho. This agreement is specific to the Research Project and will not necessarily be used as precedent for other projects between the parties.

University and Sponsor therefore agree as follows:

1. Performance Period

Work on the Research Project shall begin on July 1, 2026 and will end June 30, 2027 ("**Performance Period**").

2. Compensation & Expenses

- a. Sponsor shall pay University \$18,000.00 for work done during the Performance Period (using non-federal funds) and according to the following payment schedule:
 - i. Sponsor shall pay \$9,000.00 after this agreement is signed and upon receipt of an invoice from University.
 - ii. Sponsor shall pay \$9,000.00 upon receipt of an invoice and the final deliverable from University.
- b. Payment shall be made no more than 30 days after receipt of the invoice. University will not start work under this agreement until after it has received the first payment. University may stop work if payment is not received by 30 days or charge interest on any outstanding balance owed. Sponsor shall make payment to University by check to the following address: Regents of the University of Idaho, ATTN: Office of Sponsored Programs, 875 Perimeter Drive, MS 3020, Moscow, ID 83844-3020.
- c. Any questions about compensation or expenses shall be sent to the party's Financial Contact listed in Attachment B.
- d. University is not obligated to incur costs greater than the amount listed in Section 2.a above. Sponsor's rights under Section 4 are subject to Sponsor fulfilling its obligations under this Section 2.

3. Intellectual Property Ownership

- a. University hereby owns all inventions or discoveries conceived and first reduced to practice solely by University employees or students in performance of the Research Project ("**University Sole Intellectual Property**").
- b. Sponsor hereby owns all inventions or discoveries conceived and first reduced to practice solely by Sponsor employees in performance of the Research Project ("**Sponsor Sole Intellectual Property**").
- c. University and Sponsor hereby jointly own all inventions or discoveries conceived and first reduced to practice jointly by University and Sponsor employees or students in performance of the Research Project ("**Joint Intellectual Property**").
- d. This agreement does not grant any ownership rights to intellectual property other than the rights stated above.

4. Intellectual Property Licensing

- a. University hereby grants Sponsor a license to University Sole Intellectual Property for its internal research purposes.
- b. University hereby grants Sponsor a time-limited option to negotiate an exclusive or non-exclusive license for a specific field of use to University Sole Intellectual Property or University's interest in Joint Intellectual Property ("**Sponsor Option**"). The license shall be subject to any existing third-party rights. The terms of the Sponsor Option are as follows:

- i. The Sponsor Option shall start on the day University's Office of Technology Transfer contact discloses University Sole Intellectual Property to Sponsor's Technology contract. The contacts are listed in Attachment B. Sponsor shall have 90 days to send University a written request to license any University Sole Intellectual Property.
 - ii. After University receives Sponsor's written request to license University Sole Intellectual Property or University's interest in Joint Intellectual Property, the parties shall have 90 days to negotiate a license agreement. The 90-day period to negotiate the license agreement shall begin on the day the University receives the written request.
 - iii. University is not required to license University's Sole Intellectual Property or University's interest in Joint Intellectual Property to Sponsor if a license agreement is not executed within 90 days.
 - iv. Any license granted to Sponsor under Section 4.b will be subject to University's retention of rights to use, have used, make, or have made the licensed invention or discovery for research and educational purposes, whether alone or with one or more third parties.
- c. Sponsor hereby grants University a royalty-free, non-exclusive license to use Sponsor Sole Intellectual Property for University's internal academic and research purposes.
 - d. A party shall not invoke the Cooperative Research and Technology Enhancement (CREATE) Act of 2004, P.L. 108-453, without prior written consent from the other party. Any written consent must specifically reference the invention the CREATE Act is being invoked for.

5. Standard of Care

University shall use reasonable efforts to perform the Research Project. University does not state that the desired results shall be obtained. University shall not be required to perform the Research Project in violation of any university policies or any applicable laws and regulations.

6. Confidentiality

- a. Subject to section 6(d), information will be treated as confidential if it is (1) in written, graphic, or tangible form, or reduced to such form within 30 days of disclosure and (2) clearly marked with a stamp or legend, such as "Proprietary Information" or "Confidential Information."
- b. Confidential information will only be used as required to perform the Research Project. Each party shall use reasonable efforts to avoid disclosing confidential information to third parties, unless written approval is given by the other party. Neither party shall be liable for disclosing confidential information if the party exercised reasonable care and had reasonable controls in place to protect the confidential information. The receiving party shall keep confidential information confidential for three years from the date of disclosure.
- c. Confidential information will only be disclosed to staff members who (1) have a legitimate business need to know, (2) are required to accomplish the Research Project, or (3) must exercise a party's rights under this agreement. But, either party may disclose confidential information to its affiliates, contractors, consultants, or students, if it is necessary to complete the Research Project and if such individuals have signed a written confidentiality agreement no less restrictive than the terms in this agreement.
- d. Information is not confidential information if it is:
 - i. Required to be disclosed under court order or operation of law, including the Idaho Public Records Law, Idaho Code §§ 74-101 thru 74-126;
 - ii. Reasonably ascertained by either party to create a risk to a trial subject or public health and safety;

- iii. Published or otherwise in the public domain thru no fault of the receiving party;
 - iv. In the receiving party's possession before receipt from the disclosing party under this agreement;
 - v. Obtained by the receiving party from a third party without restriction on disclosure to another party;
 - vi. Independently developed by receiving party's staff members or employees who did not have direct or indirect access to the information; or
 - vii. Disclosed by the receiving party to a third party with the disclosing party's written approval and without restriction.
- e. Neither party gives any express or implied guarantee that information furnished under this agreement is adequate, accurate, sufficient, or free from defects or that the use or reproduction of any information shall be free from any patent, trade secret, trademark, or copyright infringement. Neither party shall be liable for any damages, costs, expenses, risks, or liabilities because of their receipt, use, or reliance on any information furnished under this agreement.
- f. At the request of the disclosing party, the receiving party shall promptly return or destroy all confidential information provided by the disclosing party and any copies made by the receiving party. However, the receiving party shall have the right to retain one copy of confidential information for record purposes only.

7. Publication

- a. University may publish or disclose the Research Project results ("**Publication**"). University shall exercise reasonable care that no Publication releases Sponsor's confidential information without Sponsor's written approval. University may catalog and place reports of the Research Project that do not contain Sponsor's Confidential information in the University library so that the results are available to the interested public.
- b. University shall give Sponsor's Technical Contact a copy of any proposed Publication 30 days before the proposed publication or disclosure. Sponsor may review the Publication for Sponsor's confidential information and request University to delete references to Sponsor's confidential information. Sponsor's right to review Publications shall expire 12 months after the Research Project ends.
- c. Sponsor may request University to delay Publication for 60 days if it identifies patentable subject matter in the Publication. To request the delay, Sponsor must send written notice to the University's Office of Technology Transfer Contact (see Attachment B) with a copy to the University's Principal Investigator. University shall cooperate to give the appropriate party time to file patent applications. The party filing patent applications shall give the other party notice of its intent to file a patent at least 15 days before filing the application.

8. Liability

- a. Each party shall be responsible only for the acts, omissions, or negligence caused by that party's own employees or agents. Nothing in this agreement shall extend the tort liability of the State of Idaho beyond that required by law, including for the state of Idaho the Idaho Tort Claims Act, Idaho Code §6-901, et seq.
- b. Each party shall be responsible for damage to property of the other party caused by its employees or agents in performance of this agreement. Because University is a state entity and subject to state appropriation laws, any property claim or damage arising from the University's employees or agents that is not covered by the University's self-insurance or other property coverage shall be paid to the extent funds are legally available.
- c. Insurance. Insurance requirements in the agreement may be evidenced by a Certificate of Financial Responsibility or Certificate of Insurance. If any coverage required by the agreement is provided by private insurers or quasi-government entities regulated under applicable insurance codes or laws, the insured party shall provide coverage and evidence of coverages upon request.

- d. **Sponsor Liability.** Sponsor shall maintain comprehensive general liability and professional insurance coverage during the term of this Agreement. Sponsor's coverage limits shall not be less than \$1 million per occurrence and \$3 million annual aggregate. Sponsor shall provide proof of insurance or loss coverage when requested by University. Sponsor certifies that it has workers compensation insurance as required by applicable state law and shall provide proof upon request.

9. Reports

University shall provide the following reports to Sponsor: *(Check appropriate box or boxes)*

- ☒ a final report on the results of the Research Projects due no later than 90 days after the Performance Period ends.
☐ progress reports: (select one) ☐ quarterly or ☐ annually.

10. Equipment

University hereby owns any equipment and materials it purchases, acquires, or fabricates with funds provided by Sponsor and as authorized by the agreement. University shall not own any equipment or materials that are expressly part of a deliverable to Sponsor.

11. Publicity

Each party shall obtain written authorization from the other party before publishing any promotional materials that use the other party's name or trademarks. However, University may, without Sponsor's written authorization, disclose Sponsor's name and the Research Project title as required or permitted by law. This section survives termination of this agreement.

12. Disclaimer

The Research Project is strictly experimental. University makes no warranties of any kind, express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement of any third-party intellectual property rights, regarding the Research Project, research results, the University Intellectual Property, Joint Intellectual Property, or other results.

13. Termination

Either party may terminate this agreement for any reason by giving the other party prior written Official Notice. The prior written Official Notice must be given at least 30 days before the date the termination takes effect. Upon termination by either party, Sponsor shall pay University any costs that were encumbered up to the termination date and any non-cancelable commitments, including without limitation tuition and fees.

14. Official Notices

Official Notices required by this agreement must be in writing to the party's Administrative Contact listed in Attachment B and delivered via Certified Mail with postage prepaid or by email with a delivery notification. Any notice not sent as required above shall not be considered an Official Notice.

15. Export Controls

- a. The parties shall comply with all applicable export control laws or regulations. Sponsor shall give the University Export Control Contact listed in Attachment B 15 days' prior written notice if Sponsor intends to deliver any information, data, materials, equipment, software, or technology that is export controlled.
- b. Sponsor shall obtain any required authorizations from the US Government before it transfers or exports any information, data, material, equipment, software, or technology to University that is export controlled.
- c. University is not required to accept export-controlled information. University may manage or alter the Research Project, as stated in Section 20, so that an export or import license is not required.

16. Independent Contractors

University and Sponsor are independent contractors. This agreement does not create a partnership, agency, or joint venture between the parties for any purpose. Each party shall be responsible for its personnel's wages, hours, benefits, insurance, and employment conditions.

17. Governing Law & Jurisdiction

Idaho law governs all questions about validity, interpretation, or construction of this agreement. The parties hereby submit to the jurisdiction of the courts of the state of Idaho for any action arising from this agreement.

18. Certification Regarding Chinese Owned and Operated Companies

Pursuant to Idaho Code § 67-2359 (effective July 1, 2023), Sponsor certifies and represents that it is not currently owned or operated by the government of China and will not for the duration of this Agreement be owned or operated by the government of China per Idaho Code § 67-2359. The terms in this section defined in Idaho Code § 67-2359 shall have the meaning defined therein, including through reference to another section of Idaho Code.

19. Certification Regarding Companies Boycotting Certain Sectors

Pursuant to Idaho Code § 67-2347A (effective July 1, 2024), if payments under this Agreement exceed one hundred thousand dollars (\$100,000) and Sponsor employs ten (10) or more persons, Sponsor certifies that it is not currently engaged in, and will not for the duration of the Agreement engage in, a boycott of any individual or company because the individual or company: (a) engages in or supports the exploration, production, utilization, transportation, sale, or manufacture of fossil fuel-based energy, timber, minerals, hydroelectric power, nuclear energy, or agriculture; or (b) engages in or supports the manufacture, distribution, sale, or use of firearms. The terms in this section defined in Idaho Code § 67-2347A shall have the meaning defined therein, including through reference to another section of Idaho Code.

20. No Waiver or Severability

No waiver will be effective unless it is in writing and signed by the Authorized Contact (see Attachment B) of the party granting the waiver. A waiver granted on one occasion will not operate as a waiver on other occasions.

21. Entire Agreement

This agreement is the entire agreement between the parties and merges all prior discussions between the parties. Neither party shall be bound by any conditions, definitions, warranties, understandings, nor representations that are not expressly included in this agreement.

22. Amendment

This agreement may only be modified by a written amendment executed by the parties' Authorized Contacts. A purchase order or similar document shall not change or add to the terms and conditions of this agreement.

23. Non-Assignment; No Third Party Beneficiaries.

Neither party may assign this Agreement. This agreement does not give any interest or rights to any third parties.

24. Order of Precedence

Any conflict in the terms of this agreement shall be resolved by giving priority in the following order: (1) this agreement, (2) Attachment A, and (3) Attachment B.

25. Sovereign Immunity

Nothing in this agreement requires University or the state of Idaho to waive or limit its sovereign immunity.

Each party is signing this agreement on the date stated opposite that party's signature.

SPONSOR

Date: 08/10/26

By: 

Name: Roger Batt

Title: Executive Director

Date: See Sig Box

By:  Digitally signed by Sarah S Martonick
Date: 2026.08.13 11:09:24
-07'00'

Name: Sarah Martonick

Title: Director, Office of Sponsored Program

8.13.26 CT

CMF 7/30/26

Attachment A – RESEARCH PROJECT

Title: Mint Stem Borer in Idaho: Biology, Ecology, and Management

Personnel

PI - Armando Falcon-Brindis (U of I)

Graduate student – Andres Vargas (U of I)

Address

29603 U of I Ln, Parma, ID 83660

(208) 722 6701

afalconbrindis@uidaho.edu

Justification

Pseudobaris nigrina, commonly known as the mint stem borer, is a weevil species that poses a significant threat to mint production in Idaho. This beetle is known for its destructive larvae feeding habits, which make tunnels into the stems of mint plants, causing structural weakening, stunted growth, which ultimately reduces essential oil yield. Native to North America, *P. nigrina* has adapted well to regions where commercial mint is cultivated, where it persists as a challenging and economically important pest.

The life cycle of *P. nigrina* begins with adult weevils laying eggs on the mint stems. After hatching, the larvae bore into the stem tissue, feeding internally and disrupting the nutrient flow. However, due to its feeding habits, *P. nigrina* is difficult to detect and manage, especially because research-based information is lacking.

In Idaho, where mint is a valuable cash crop for essential oil production, infestations of *P. nigrina* can lead to significant economic losses. However, the basic aspects of the biology of this species, and the extent of damage inflicted on mint remain poorly understood. The limited information available is outdated and not comprehensive, leaving growers without effective tools to prevent or manage infestations. This lack of knowledge about insect biology and ecology, combined with the absence of registered insecticides, represents a critical gap preventing the implementation of reliable IPM strategies in the region.

Hypothesis & Objectives

Hypothesis 1: Considering the biology of *Pseudobaris nigrina*, the management strategies, irrigation system, and local landscape configuration will influence its populations.

Hypothesis 2: The attacks of the mint stem borer are associated with specific mint varieties.

Objective 1: Evaluate the responses of *P. nigrina* to crop age, irrigation type, and surrounding crops.

Objective 2: Assess the preference of *P. nigrina* to the local mint varieties (Black Mitcham, Scotch Spearmint, and Native Spearmint).

Procedures/Plan of Work

Based on previous conversations with the Idaho Mint Commission growers, the mint stem borer has been a prevalent issue in Fruitland, Parma, and Wilder. Therefore, three fields of each mint variety will be selected for this study, i.e., Black Mitcham, Scotch Spearmint, and Native Spearmint. The sampling dates will be established after speaking with the growers willing to collaborate on this project, but based on the biology of the species, the sampling will be conducted every month, from April to August 2025.

The population dynamics will be monitored once a week at each sampling location. The sampling methods will include sticky cards, sweep netting, and plant material collection. At each field, two 25 sweeps (n = 50) will be conducted, and two sticky cards will be installed. This will aim to detect and monitor the activity of adults. For larvae detection and counting, 20 plants will be randomly selected from each field and taken to the laboratory for further inspection. *In situ* observations will also be included as infestations can be associated with certain conditions: water stress, nearby crops and host plants, mint crop age, and variety.

Duration

The proposed project is expected to last two years, allowing us to account for environmental variation, collect representative samples, and make robust assumptions on the phenology and damage of the mint stem borer.

Cooperation/Collaboration

Cooperation with local farmers and members of the Idaho Mint Commission will be critical to developing this project, e.g., Chris Mio and Geoff McClelland.

Anticipated Benefits, Expected Outcomes and Impacts, and Transfer of Information

Mint growers will be provided with updated information about the mint stem borer, its damage, phenology, and potential chemical control options, which will directly impact the pest management decision-making process. The data collected over two years will have enough robustness to produce at least one high-impact research paper and one extension publication.

Budget:

Salary:	\$0
Temporary Help:	\$10,600.00
Fringe:	\$1,113.00
Travel:	\$2,880.00
Other Expenses:	\$3,407.00
Capitol Outlay:	\$0
Tuition and Fees:	\$18,000.00

Attachment B – CONTACT INFORMATION

University	Sponsor
UNIVERSITY AUTHORIZED CONTACT Name: Sarah S. Martonick, Director, OSP Address: 875 Perimeter Drive, MS 3020 Moscow, ID 83844-3020 Email: osp@uidaho.edu Phone Number: 208-885-6651	SPONSOR AUTHORIZED CONTACT Name: Roger Batt Address: 55 SW 5 th Ave., STE 100 Meridian, ID 83642 Email: roger@amgidaho.com Phone number: 208-888-0988
UNIVERSITY FINANCIAL CONTACT Name: Financial Unit Address: 875 Perimeter Drive, MS 3020 Moscow, ID 83844-3020 Email: osp-billing@uidaho.edu Phone Number: 208-885-6651	SPONSOR FINANCIAL CONTACT Name: Address: Email: Phone number:
UNIVERSITY ADMINISTRATIVE CONTACT Name: Post Award Unit Address: 875 Perimeter Drive, MS 3020 Moscow, ID 83844-3020 Email: postaward@uidaho.edu Phone number: 208-885-6651	SPONSOR ADMINISTRATIVE CONTACT Name: Address: Email: Phone number:
UNIVERSITY PRINCIPAL INVESTIGATOR Name: Armando Falcon-Brindis Address: 29603 U of I Ln Parma, ID 83660 Email: afalconbrindis@uidaho.edu Phone number: (208) 722 6701	SPONSOR TECHNICAL CONTACT Name: Address: Email: Phone number:
UNIVERSITY EXPORT CONTROL CONTACT Name: Office of Research Assurances Address: 875 Perimeter Drive, MS 3010 Moscow, ID 83844-3010 Email: ored-export@uidaho.edu Phone number: 208-885-0174	SPONSOR EXPORT CONTROL CONTACT Name: Address: Email: Phone number:
UNIVERSITY OFFICE OF TECHNOLOGY TRANSFER CONTACT Name: OTT Address: 875 Perimeter Drive, MS 3003 Moscow, ID 83844-3003 Email: ott@uidaho.edu Phone number: 208-885-4550	SPONSOR TECHNOLOGY CONTACT Name: Address: Email: Phone number:

***If a Sponsor contact is not provided, any information that would have been sent to that individual will be sent to the Technical Contact.